

DotCloud Consulting

29 Plaine st
Midstream Hill Estate
Midstream
1692
(c) 0723807212

Multiple Opportunity Teaming Agreement

Effective Date: _____

1. Parties

1.1 DotCloud: DotCloud Consulting CC (Registration No. 2011/102923/23), with its registered address and principal place of business as set out in the letterhead above ("DotCloud").

1.2 Partner (Subcontractor): the entity completing the details below ("Partner").

Partner / Subcontractor Details

Legal Entity Name: _____

Registration Number: _____

Jurisdiction of Incorporation: _____

Registered Address: _____

Authorised Representative (Full Name): _____

Title/Position: _____

Email Address: _____

Contact Number: _____

2. Definitions and Interpretation

In this Agreement, unless the context indicates otherwise:

"Placement Application" means DotCloud's proprietary placement and matching platform, including related systems, workflows, databases, analytics and derived insights.

"DotCloud Systems" means any DotCloud email accounts, domains (including dotcloud.africa), software, tools, repositories, storage, CRM, and any access credentials provided to the Partner.

"Introduced" includes any person or entity identified, revealed, shortlisted, interviewed, messaged, proposed, or otherwise made known to the Partner through DotCloud, the Placement Application, proposals, communications, meetings, analytics or related engagement activity.

"Opportunity" means any project, placement, recruitment, consulting or technical services opportunity pursued, discussed or performed in terms of this Agreement.

Headings are for convenience only and do not affect interpretation.

3. Purpose and Scope

This Agreement establishes a framework under which the Parties may collaborate on multiple Opportunities. Where required, the Parties may agree Opportunity-specific statements of work or schedules consistent with this Agreement.

4. Subcontractor Relationship (Non-Employment)

The Partner is engaged strictly as an independent contractor and subcontractor to DotCloud. Nothing in this Agreement creates an employment relationship, partnership, joint venture, agency or fiduciary

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relationship. The Partner has no authority to bind DotCloud unless expressly authorised in writing by DotCloud.

5. DotCloud Systems, Email, Brand and Authority Controls

Upon signature, DotCloud may issue the Partner with a dotcloud.africa email address and access to DotCloud Systems strictly required to perform services under this Agreement. All DotCloud Systems, accounts, credentials, records and data remain the exclusive property of DotCloud.

All external communications with candidates, clients, employers, suppliers or other third parties relating to DotCloud engagements must be conducted exclusively under DotCloud's name and branding using DotCloud Systems, unless DotCloud approves otherwise in writing.

The Partner may not make representations, commitments, pricing decisions, contractual assurances or guarantees on behalf of DotCloud without prior written approval. The Partner shall not present itself as an employee, director or authorised signatory of DotCloud.

DotCloud may monitor, audit, suspend or revoke access to DotCloud Systems at any time. Upon termination or expiry, all access will be withdrawn immediately.

6. Intellectual Property and Platform Protection

All rights, title and interest in and to the Placement Application and DotCloud Systems (including software, source code, configurations, workflows, databases, analytics, scoring mechanisms and derived insights) remain the exclusive intellectual property of DotCloud.

The Partner shall not copy, reverse engineer, decompile, replicate, scrape, create derivative works from, or use information obtained from the Placement Application to develop or enhance a competing platform or service.

7. Ownership of Work Product and Communications

All communications, correspondence, candidate profiles, proposals, negotiations, deliverables, reports, analyses and work product created or transmitted by the Partner in the course of providing services under this Agreement (whether created using DotCloud Systems or otherwise) vest exclusively in DotCloud.

8. Fees and Value-Added Tax

All fees, costs, placement amounts, commissions, remuneration or other charges of whatsoever nature negotiated or agreed pursuant to this Agreement are exclusive of Value-Added Tax ("VAT"), unless expressly stated otherwise in writing.

Where VAT is applicable under the Value-Added Tax Act, 89 of 1991, VAT shall be payable in addition to the stated amount upon receipt of a valid tax invoice. No amount is deemed VAT-inclusive unless expressly stated as such.

9. Non-Solicitation and Non-Circumvention

During the term of this Agreement and for twelve (12) months following termination or expiry, the Partner shall not, directly or indirectly (including through affiliates, employees, agents or intermediaries):

- (a) solicit, approach, contract with, or attempt to contract with any client, candidate, employer, supplier or other business entity Introduced by DotCloud; or
- (b) circumvent, bypass or interfere with DotCloud's commercial relationships or Opportunities, without DotCloud's prior written consent.

10. Confidentiality and Data Protection (POPIA)

The Partner shall keep all non-public information relating to DotCloud, the Placement Application, Opportunities, pricing, candidates, clients and suppliers strictly confidential and shall use such information solely for purposes contemplated by this Agreement.

The Partner shall comply with the Protection of Personal Information Act, 4 of 2013 ("POPIA") and shall implement reasonable security safeguards. Any actual or suspected personal information breach shall be reported to DotCloud immediately and, in any event, within 24 hours of becoming aware.

11. Return/Destruction of DotCloud Materials

Upon DotCloud's request or upon termination/expiry, the Partner shall promptly return or securely delete all DotCloud Confidential Information and materials in its possession or control (including copies), and certify such deletion in writing if requested, save to the extent retention is required by law.

12. Indemnity

The Partner indemnifies and holds DotCloud harmless against losses, claims, damages, fines, penalties and reasonable legal costs arising from (a) unauthorised representations or commitments made by the Partner; (b) breach of confidentiality or POPIA obligations; or (c) misuse of DotCloud Systems or the Placement Application.

13. Term and Termination

This Agreement commences on the Effective Date and continues for two (2) years unless terminated earlier by either Party on thirty-one (31) days' written notice.

DotCloud may suspend access and/or terminate this Agreement immediately if the Partner breaches a material term, or where continued engagement may expose DotCloud to legal, regulatory, reputational or commercial risk.

14. Remedies

The Partner acknowledges that breach may cause irreparable harm. DotCloud is entitled to interdictory relief, specific performance and recovery of legal costs on an attorney-and-client scale, in addition to any other remedies available at law.

15. Notices

15.1 Notices must be in writing and delivered by hand, email, or courier to the addresses set out below (or as updated by written notice).

15.2 DotCloud: 29 Plaine st, Midstream Hill Estate, Midstream, 1692; Email:

15.3 Partner: Address and Email as completed in clause 1.2.

16. Entire Agreement; Variation

This Agreement and the NDA between the Parties constitute the entire agreement regarding the subject matter and supersede prior discussions. No amendment or variation is valid unless in writing and signed by both Parties.

17. Assignment

The Partner may not assign, transfer, subcontract or delegate any rights or obligations under this Agreement without DotCloud's prior written consent.

18. Severability

If any provision is held invalid or unenforceable, it shall be severed to the minimum extent necessary and the remaining provisions remain in full force.

19. Governing Law and Jurisdiction (South African Courts Only)

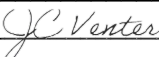
This Agreement shall be governed by the laws of the Republic of South Africa. The Parties consent to the exclusive jurisdiction of the courts of South Africa for all disputes arising from or related to this Agreement.

20. Signatures

For DotCloud Consulting CC

Name: Charl Venter

Title: Member

Signature: 

Date: _____

For Partner (Subcontractor)

Name: _____

Title: _____

Signature: _____

Date: _____